

**DEPARTMENT EIGHT
JUDGE WENDY GETTY
707-207-7308
TENTATIVE RULINGS SCHEDULED FOR
WEDNESDAY, JULY 01, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30.

**Jasper Willie Anderson vs. Hampton Inn Vallejo, et al.
Case No. FCS059565**

Trial Management Conference

TENTATIVE RULING:

Parties to appear. Remote appearances authorized.

**Capital One N.A. v. Ruben Vasquez
Case No. CL25-07941**

Motion to Set Aside/Vacate Dismissal and Enter Judgment

TENTATIVE RULING:

Plaintiff moves to set aside the dismissal of this action and for entry of judgment pursuant to a stipulation.

Plaintiff's motion is DENIED WITHOUT PREJUDICE.

Defendant RUBEN VASQUEZ's first appearance in this action was when Plaintiff caused the filing of a stipulation and paid Defendant's first appearance fee. Defendant has never formally appeared in this action and the stipulation fails to state an appearance. The court has no ability to determine whether the mailed notice was adequate to provide Defendant with due process.

A confession of judgment without notice and opportunity to be heard violates due process. (See *Isbell v. County of Sonoma* (1978) 21 Cal.3d 61.)

Reflecting due process concerns, service of a motion affecting the rights of a defendant who has not appeared in an action typically is required to be made in the same manner as required for service of summons and complaint. (See, e.g., applications for writs of attachment [Code Civ. Proc, § 482.070, subd. (d)]; applications for writs of possession [Code Civ. Proc., § 512.030, subd. (b)].)

AARON MOULTRIE v. UNKNOWN ENTITY
Case No. CU24-04235

SOLANO's Demurrer

TENTATIVE RULING

Defendant SOLANO COUNTY ("SOLANO") demurs to Plaintiff AARON MOULTRIE's complaint alleging violation of Civil Code section 52.7 and intentional infliction of emotional distress. Plaintiff alleges that while he was in SOLANO's custody in 2006 SOLANO agents implanted a radio chip in his right knee without his consent. Plaintiff alleges discovery of the radio chip in approximately May 2023. Plaintiff alleges that the presence of the chip causes him pain, discomfort, and inability to utilize cell phones or the internet.

Legal Standard on Demurrer. "The function of a demurrer is to test the sufficiency of the complaint as a matter of law." (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint is sufficient if it alleges ultimate rather than evidentiary facts, but the plaintiff must set forth the essential facts of his or her case "with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent" of the plaintiff's claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) Legal conclusions are insufficient. (*Id.* at 1098–1099; *Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 551, fn. 5 [ultimate facts sufficient].) The Court "assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law." (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.)

Requests for Judicial Notice. Matters subject to judicial notice may support a demurrer. (Code Civ. Proc., § 430.30, subd. (a).) The court takes judicial notice of Plaintiff's government claim submitted February 10, 2025 and rejected February 20, 2025 under Evidence Code section 452, subdivision (c). (*Gong v. City of Rosemead* (2014) 226 Cal.App.4th 363, 376.)

Government Tort Claims Act. Under the Government Claims Act (a.k.a. the Tort Claims Act), claims for damages against public entities generally must be presented to the entity within six months of accrual of the injury. (*A.M. v. Ventura Unified School District* (2016) 3 Cal.App.5th 1252, 1257.) A written administrative claim for injury to the